
Appeal Decision

Hearing held on 25 August 2026

Site visit made on 25 August 2026

by M Clowes BA (Hons) MCD PG CERT (Arch Con) MRTPI

an Inspector appointed by the Secretary of State

Decision date: 22nd September 2026

Appeal A Ref: 6010035

Victoria Vaults, 47 - 49 Nunnery Lane, York YO23 1AB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for outline planning permission.
 - The appeal is made by Mr Nabeel Hanif [The Vaults (York)] against the City of York Council.
 - The application Ref is 25/01690/FUL.
 - The development proposed is the conversion of Victoria Vaults public house into 3 townhouses.
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Decision

1. The appeal is dismissed.

Applications for costs

2. Prior to the Hearing, an application for costs was made by Mr Nabeel Hanif [The Vaults (York)] against the City of York Council. This application is the subject of a separate decision.

Preliminary Matters and Main Issues

3. The address of the appeal site in the banner heading above follows agreement of the parties at the Hearing that it accurately identifies the site location.
4. The Hearing dealt simultaneously with the companion appeal under reference 6011055. Whilst there are common themes between the appeals, they concern different proposals and planning considerations. For clarity, I have issued separate decisions.
5. The Council submitted late evidence during the Hearing confirming that the appeal site had been listed as an Asset of Community Value (ACV) on 11 August 2026. The appellant had already notified me of such in writing prior to the Hearing and the acceptance of this information did not therefore prejudice any party.
6. A revised National Planning Policy Framework (the Framework) was published on 17 August 2026 during the appeal process. Both parties were given the opportunity to comment on the implications of the revision in relation to the proposal, such that I am satisfied that no prejudice has occurred.
7. The appeal is against the Council's failure to determine the planning application within the relevant statutory timeframe. I have had regard to the Council's statement which provides clarity in terms of the reasons the Council would have

refused planning permission for the proposed development, had it been able to do so.

8. Having regard to the written evidence and the discussions at the Hearing, the main issues are, i) whether the proposed residential development would result in the loss of a community facility, cultural venue and employment generating use; and if so, ii) whether that loss would be justified having regard to the evidence of viability and marketing and to the development plan and national planning policy.

Reasons

Community Facility

9. The Victoria Vaults comprises a 2-storey building fronting Nunnery Lane within York City Centre, just outside of the historic walls. The parties disagree on the proper characterisation of the existing use. Nonetheless, it was last operated as a public house/live music venue with accommodation above. Following the appellant's purchase of the appeal site, the commercial use ceased and the first floor is currently rented out as a short-term holiday let.
10. Policy HW1 of the City of York Local Plan (CYLP) 2025, seeks to protect existing community facilities, *or facilities last used for community purposes* [my emphasis]. Policy D3 seeks to sustain, enhance and add value to York's cultural character and supports development that does not cause the loss of cultural facilities, activities, services, venues or spaces that deliver cultural opportunities. Together, these policies reflect the importance attached by the development plan to the retention of facilities which contribute to community life, social interaction and cultural wellbeing. In addition, Policy EC2 seeks to prevent the loss of existing employment land subject to compliance with specific criteria. I will return to this matter later in my decision.
11. As discussed above, Policy HW1 seeks to protect community facilities and permits their loss only where specific criteria are satisfied. The objectives of the policy are therefore consistent with Policy HC6 of the revised Framework, which seeks to guard against the unnecessary loss of valued community facilities and services. Consequently, I afford substantial weight to Policy HW1.
12. There is no dispute that the appeal building historically operated as a public house. Whilst the appellant is entitled to place weight on the Council's earlier decision to remove the appeal site from the ACV register in November 2025, that position has subsequently been reversed by the re-listing of the property as an ACV prior to the Hearing. The evidence before me does not include the detailed assessments which informed either ACV conclusion. I am aware that the appellant has requested a review of the most recent listing decision. Nonetheless, the appeal site remains listed as an ACV at the time of my determination of this appeal.
13. In any event, the issue before me is not whether the property satisfies the statutory tests for inclusion on the ACV register, but whether the proposal complies with Policy HW1 of the CYLP. The ACV regime and the planning system serve different purposes and apply different statutory and policy tests. Policy HW1 is not restricted to assets listed as ACVs, nor does it provide that a facility ceases to be a community facility once removed from the register. Rather, it applies more broadly to existing and recently used community facilities, with public houses expressly identified within the supporting text as an example of such facilities.

14. Accordingly, whilst I have taken both the de-listing and subsequent re-listing into account as material considerations, neither is determinative of whether the appeal site should be regarded as a community facility for the purposes of Policy HW1. My conclusion derives from the nature of the use that was being undertaken at the appeal site immediately prior to its closure, irrespective of its status under the separate ACV regime. That is a public house that provided a venue for social interaction and community activity as clearly expressed in the representations of interested parties.

Cultural Venue

15. The appellant submits that no separate planning permission exists for the use of the appeal site as a music venue and that it should only be considered as a public house. In this regard, he contends that it should not be viewed as a cultural facility.
16. The Council contend that the appeal site functioned as both a public house and a dedicated live music venue before its closure. The premises hosted regular ticketed live music events 3 nights per week and contained a dedicated stage area, together with sound and lighting equipment associated with such events. I have heard and read persuasive evidence from interested parties that the venue provided opportunities for local and emerging musicians (particularly bands rather than soloists), promoters, sound technicians and other creative practitioners to develop and showcase their skills before live audiences, in a relatively small venue. It also hosted national and international touring bands and in doing so, it attracted visitors from a wider area than the local catchment alone.
17. Detailed representations from individuals and local groups including York Music Venue Network, The Campaign for Real Ale (CAMRA), the Campaign for Pubs and Clements Hall Local History Group, consistently describe the premises as an important and dedicated venue for live music, that was publicly recognised as part of York's grassroots music infrastructure. In this regard, I note that it received support through the Government's Cultural Recovery Fund. It was also the recipient of funding from the City of York Council's grassroots venue support grants. Whilst not determinative, the award of specific cultural funding lends support to the view that the premises performed an established cultural function in addition to its role as a public house.
18. I acknowledge that the appellant has identified a large number of venues in York (circa 40) that are said to host live music. However, the Council and interested party evidence indicates that very few offer a comparative grassroots music function due to occupancy levels, lack of dedicated performance space, frequency of events and lack of ticketing. Whilst many of those venues provide some form of live music at different intervals, their primary function is as food and/or drink establishments, supplemented by occasional open-mic or live music events, rather than a regular programme of ticketed performances.
19. The evidence before me, including discussions at the Hearing, indicates that the Victoria Vaults was one of only 2 such premises for dedicated live music within the city centre, the other being The Crescent. However, the Crescent is understood to be a larger venue with a capacity of around 300 people. The Fulford Arms was also discussed at the Hearing, but it is located outside of the city centre. In addition, there was no conclusive evidence that the FortyFive Vinyl Café performs a similar role as a dedicated live music venue with specialist facilities and

performance space suitable for full bands, such that I am unable to consider it comparable.

20. Even if some of the venues identified by the appellant could be regarded as providing a broadly similar offer, they amount to no more than a very small number of alternatives. I am therefore satisfied that the Victoria Vaults fulfilled a specific and relatively uncommon role within York's grassroots music scene, and that there is insufficient alternative provision of this particular type of cultural venue within the local area to justify its loss. Whether or not the premises was operating beyond its licensed capacity and lawful planning use, I find that it made a meaningful contribution to York's cultural life and possessed a level of cultural value beyond that normally associated with a public house alone. In reaching this view, I note that at the Hearing Mr Waterhouse retracted the conclusion within the Stapleton Waterhouse Report that the loss of Victoria Vaults as a live music venue would not represent a major loss to York's cultural provision, explaining that he was not qualified to make such an assessment. I therefore attach little weight to that particular conclusion of the report.
21. It is not for me in considering this S78 appeal to determine the lawful use of the appeal site. Nor is it necessary to reach a definitive conclusion regarding the precise planning status of the music-related activities undertaken from the premises. Taking all of the information presented in the round, I am satisfied that whilst the Victoria Vaults operated as a public house, it also functioned as a venue that delivered cultural opportunities through the provision of live music events, thereby engaging the objectives of Policy D3.
22. Furthermore, Policy HC6 of the Framework expressly identifies both public houses and cultural venues as examples of key community facilities. The dual function of the appeal site as a public house and venue for live music therefore reinforces, rather than undermines the conclusion that the objectives of both Policies HW1 and D3 are relevant to the determination of the appeal.
23. It follows that the proposed conversion and extension of the appeal building into 3 townhouses would result in the loss of a community facility and cultural venue.

Whether the Loss is Justified

24. Criteria iv) of Policy HW1 would allow the loss of a commercial community facility where evidence is provided demonstrating that the facility is no longer financially viable with no market interest. Paragraph 6.10 of the supporting text explains that evidence of marketing for a minimum of 2 years without success will be required, together with a marketing report and an open book-based viability appraisal, demonstrating that the facility is not viable and could not reasonably be made so. Though not a requirement of the policy itself, the explanatory text nonetheless sets out the type of evidence considered necessary to demonstrate policy compliance.
25. In terms of viability, the appellant relies on a report produced by Nabarro McAllister and the trading experience of the most recent venue operator. The evidence indicates that the business experienced trading losses, required personal injections of capital and faced difficult trading conditions. Information has also been provided regarding operating costs associated with the venue and the experiences of the previous operator, albeit this is limited in scope. The Nabarro McAllister report concludes that the premises are not financially viable as a public

house and estimates that substantial investment would be required to return the ground floor to an operational condition.

26. The evidence falls short of constituting the open book viability appraisal anticipated by the supporting text to Policy HW1. Whilst it demonstrates that the most recent operation of the venue was unsuccessful, I am not persuaded that it demonstrates that the use itself could not reasonably be made viable. Little evidence has been provided regarding whether the venue could be made viable under a different ownership structure, management approach or business model, nor has any benchmarking been undertaken against comparable venues. Consequently, it is unclear why the Nabarro McAllister report concludes that the premises are inherently unviable as a public house and live music venue, rather than demonstrating that the previous business was unsuccessful. Similarly, the suggested refurbishment cost of £250,000 is unsupported by any detailed calculations or cost evidence.
27. A number of interested parties contend the venue became increasingly underused and was only open intermittently before the appellant took possession. Whilst understanding the difficulties associated with operating such uses viably, I cannot confidently conclude that the poor financial performance was attributable to the use itself being incapable of operating viably in this location, rather than the manner in which the previous business was operated and managed.
28. Turning to the marketing evidence, I have had regard to both the Carter Towler and Barry Crux exercises. The Carter Towler particulars marketed the property not only as a public house and music venue, but also as an 'excellent medium term redevelopment opportunity.' A purchase resulted from that exercise, namely by the appellant, who explained at the Hearing that the property was acquired as an investment opportunity. Whilst the eventual sale price was below the original asking price, there is no persuasive evidence before me that the agreed figure represented an appropriate market value for the continuation of the existing use, rather than reflecting, at least in part, the site's redevelopment potential.
29. The subsequent Barry Crux exercise took a different approach. By that stage the first-floor accommodation had been refurbished as a short-term holiday let and excluded from the letting particulars, with only the ground floor being marketed. The appellant contends that the first floor has long been a separate flat. However, irrespective of its precise planning status, the evidence indicates that the venue previously operated with residential accommodation above. The Carter Towler particulars marketed the whole property, including the first-floor accommodation, and the Nabarro McAllister report similarly refers to the premises as a public house with a manager's flat above. The Barry Crux exercise therefore tested the market for occupation of the ground floor alone, rather than for the venue in the form in which it had most recently operated.
30. This distinction is important because the evidence suggests that at least some prospective operators considered the availability of the upper floors to be material to their interest in the property. Stapleton Waterhouse similarly identified the exclusion of the flat as a potential issue when assessing future operation of the premises as a public house and music venue.
31. Taken together, the two marketing exercises provide useful evidence regarding demand for the premises. However, they do not demonstrate that the property was

marketed solely for continuation of its established use as a public house and live music venue with accommodation above, or that it was consistently valued by reference to that use. Stapleton Waterhouse identified concerns that the valuation was high and that further marketing of the property as a whole would be appropriate in order to fully test the market. The existence of some interest in the property, notwithstanding the asking price, does not demonstrate that the valuation was appropriate or that all potential demand had been captured.

32. Even if that was not the case, I am not persuaded that the evidence demonstrates an absence of market interest. The Barry Crux marketing exercise generated a number of enquiries and viewings, including interest from parties wishing to continue public house, hospitality and music-related uses. Whilst they did not lead to funded offers, they are nevertheless indicative of ongoing market interest in the facility. Furthermore, the absence of the first-floor accommodation from the marketing exercise appears to have reduced interest from at least some prospective operators. Consequently, I cannot be satisfied that the marketing undertaken would necessarily have identified all potential interest in retaining the facility in its established form.
33. I acknowledge that the Framework's recent revision post-dates the adoption of the local plan. Policy HC6 resists the loss of key community facilities and public service infrastructure, unless amongst other things, it can be demonstrated that there is no reasonable prospect of the use being retained. In the case of public houses, the policy states that evidence should be provided demonstrating that reasonable steps have been taken to market the property for its *existing use* [my emphasis] without success for a period of at least 12 months. This differs from the supporting text to Policy HW1 of the CYLP which states a minimum of 2 years marketing.
34. I am not convinced by the Council's position that the appeal site ceases to be a public house for the purpose of the Framework simply because the venue is also considered to be a cultural venue in this instance. Importantly, Policy HC6 of the Framework treats marketing as evidence relevant as to whether there is a reasonable prospect of retention, rather than establishing a determinative test based solely upon the passage of a specified period of time. Any tension between the Framework and Policy HW1 relates principally to the guidance contained within the supporting text, rather than the operative wording of the policy itself.
35. In any event, I do not consider it necessary in this case to reach a definitive conclusion regarding the weight to be attached to the 2-year marketing expectation in the supporting text, nor to determine whether the more recent 12-month period in the Framework alters that position. This is because in both policies, the marketing periods are evidential rather than determinative.
36. At the Hearing Mr Waterhouse was clear that the only way to fully expose the appeal site to market is to offer the whole property for sale and to let, based on a valuation of the existing use only. That has not occurred, irrespective of the duration of the marketing to date. My conclusions do not turn on the duration of the marketing alone. Rather, the central question is whether the evidence demonstrates that there is no reasonable prospect of the facility being retained. I have found that not to be the case.

Employment Use

37. There is no dispute that the former use generated employment, both directly through the operation of the premises and more broadly through the supply chain in connection with the music activities undertaken there. Redevelopment for housing would result in the loss of an employment-generating use.
38. The appellant contends that the operation of a music venue is incompatible with surrounding residential uses. Reliance is placed on the existence of nearby housing, the history of noise complaints and the observations of Stapleton Waterhouse regarding the difficulties of operating a music venue beneath residential accommodation.
39. I have carefully considered these submissions. However, the evidence does not persuade me that the former use was inherently incompatible with its surroundings. The site operated as a public house for 160 years and a music venue for a considerable period within an established mixed urban environment. The Council's Public Protection Team records only sporadic complaints regarding noise over an extended period and confirms that no noise abatement notice was served. The evidence also indicates that mitigation works were undertaken and that later issues largely related to operational matters such as doors being left open.
40. I acknowledge Stapleton Waterhouse's conclusion that the separate occupation of the first-floor accommodation would create difficulties for the operation of a future music venue. However, that observation principally concerns the circumstances arising from the subsequent separation and refurbishment of the first-floor accommodation, rather than demonstrating that the historic use of the building itself was incompatible with neighbouring land uses.
41. Nor am I persuaded that the evidence demonstrates that the existing use lacks market attractiveness or is incapable of supporting a viable commercial business. For the reasons set out above in relation to Policy HW1, the viability evidence before me is limited, and the marketing undertaken demonstrates some continuing interest in occupation of the premises for hospitality and music-related uses. Whilst that interest did not culminate in a completed transaction, it nevertheless weighs against a conclusion that the existing use is demonstrably unviable or unattractive to the market.
42. Accordingly, whilst I accept that the proposal would not result in the loss of an employment site that is necessary to meet wider employment land requirements during the plan period, I am not satisfied that the appellant has demonstrated that the existing use is no longer viable in terms of market attractiveness, business operations, condition or compatibility with adjacent uses. Consequently, the proposal conflicts with criterion i) of Policy EC2.

Conclusion

43. Drawing these matters together, I find that the Victoria Vaults functioned as both a community facility and cultural venue immediately prior to its closure. The proposed residential development would therefore result in the loss of a community facility for the purposes of Policy HW1 and a cultural venue in respect of Policy D3. It would also result in the loss of an employment-generating use for the purposes of Policy EC2.

44. I have carefully considered the viability and marketing evidence submitted in support of the proposal. Whilst the most recent operation of the venue was commercially unsuccessful, I am not satisfied that the evidence demonstrates that the facility could not reasonably be made viable, nor that there is no reasonable prospect of its retention having regard to the market interest identified. Consequently, I find that the requirements of Policy HW1(iv) have not been met.
45. Whilst Policies D3 and HW1 address different aspects of the appeal proposal, there is a clear overlap between them in this case. Having found that the evidence does not satisfactorily justify the loss of the community facility, I am likewise not persuaded that sufficient justification has been provided for the loss of the cultural venue. I therefore find conflict with Policy D3. For similar reasons, I further find that it has not been demonstrated that the existing use is unviable in terms of market attractiveness, business operations, condition or compatibility with adjacent uses so as to justify the loss of employment land under Policy EC2.
46. Consequently, I find that the appellant has failed to demonstrate that the loss of the community facility, cultural venue and employment-generating use would be justified. A substantial adverse effect would ensue. The proposal would therefore conflict with Policies HW1(iv), D3 and EC2 of the CYLP. In reaching that conclusion, I find that the proposal would conflict with Policy HW1(iv) irrespective of whether the relevant marketing benchmark is 12 months or 2 years. The proposal would also conflict with Policy HC6 of the Framework and Policy E2, which seeks to support economic growth by ensuring the availability of land and premises to meet the needs of businesses and employment-generating activities.

Other Matters

Heritage Assets

47. The appeal site lies immediately adjacent to, but outside, the Central Historic Core Conservation Area (CHCCA). The significance of the CHCCA derives from the exceptional survival of York's historic urban form, its medieval street pattern, the prevalence of historic buildings of varying periods and styles, the relationship between buildings, streets and spaces, and the contribution of landmark heritage assets including, but not limited to, the City Walls and York Minster. The contribution made by the appeal site to the significance of the CHCCA is therefore primarily derived from its role within the surrounding townscape and urban context.
48. The appeal site is also located within the setting of the Grade I listed and Scheduled Ancient Monument (SAM) City Walls including Victoria Bar¹, and the Grade II listed The Moat House opposite². The significance of the SAM and listed building comprising the City Walls and Victoria Bar derives principally from its exceptional evidential, historic and architectural value as one of the most complete surviving medieval town defences in England. The monument provides tangible evidence of York's historic development, illustrates the evolution of the city's fortifications over many centuries and remains an important landmark contributing to the city's identity and historic character. Its significance is also derived from its prominence within the townscape and the ability to appreciate the monument as part of the historic approach to the city.

¹ List Entry No 1259262.

² List Entry No 1257034.

49. The significance of The Moat House derives from its special architectural and historic interest as a mid-Victorian building and its contribution to the historic townscape of Nunnery Lane.
50. Whilst the appeal site does not form part of the SAM, it lies within the urban environment in which the City Walls, Victoria Bar and The Moat House are experienced. Its contribution to significance is therefore primarily contextual, arising from its role within the surrounding townscape rather than through any direct historical or functional relationship with the designated heritage assets.
51. The proposal would retain the existing building, and the extension would be of an appropriate design and materials located to the rear. The principal frontage would remain largely unchanged, and the alterations would be read in the context of the existing urban streetscape characterised by a variety of building forms and later alterations. In this regard, the relationship with the designated heritage assets would remain neutral post-development.
52. Having regard to the scale, siting and design of the proposed development, I find that it would preserve the significance of the SAM and the settings of the listed City Walls and Victoria Bar, and The Moat House. The proposal would preserve the contribution that the appeal site presently makes to the setting of the CHCCA. Consequently, the proposal would accord with Policies D4 and D5 of the CYLP. In reaching this conclusion, I have had special regard to the desirability of preserving the setting of the listed buildings, as required by section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990.

Other Decisions

53. I have had regard to the previous appeal decisions referred to by the appellant including the 2 Jubilee decisions. In the 2022 appeal³ the ground floor public house was being retained with residential accommodation above. It did not therefore result in the loss of community facilities.
54. Whilst there are similarities with the appeal proposal in the 2025⁴ Jubilee case, the property had been vacant and marketed for a substantial period. The Inspector was satisfied having regard to the particular viability and marketing evidence before him, including extensive marketing over a prolonged period and his finding that there was no compelling evidence of meaningful market interest in the continued operation of a public house from the site. Moreover, the Jubilee did not perform the same established cultural function as I have found existed at the Victoria Vaults. Consequently, whilst I have had regard to the Jubilee decisions, they do not alter my conclusions in the circumstances of this appeal.
55. The Bay Horse decision concerned a different proposal relating to the change of use of a pub with ancillary café to a full café use with flats above⁵. Policy HW1 of the CYLP was given limited weight as the plan had not been adopted and was subject to modifications following examination. The Inspector determined that the area was lacking a coffee shop and that it could be considered as a community facility such that there would be no loss overall. That is not the case here given that the proposal would remove the community facility and cultural venue.

³ Appeal Decision APP/C2741/W/21/3285000.

⁴ Appeal reference APP/C2741/W/25/3362935.

⁵ Appeal reference APP/C2741/W/23/3333593.

56. Likewise, the Magnet approval arose in a different policy context where the main issue related to whether the harm arising from the demolition of a Non-Designated Heritage Asset would be outweighed by the benefits of the scheme, rather than whether the loss of a community use was acceptable⁶.
57. I have had regard to the consistency principle arising from *North Wiltshire DC v Secretary of State for the Environment*. However, consistency does not require identical outcomes where the evidence and circumstances differ. Whilst I have carefully considered the appeal decisions relied upon by the appellant, my findings are based on the particular evidence before me. In this case that is regarding the role of the Victoria Vaults, the viability information submitted, the marketing undertaken and the application of policies within the development plan. The previous appeal decisions do not affect my findings.

Other Considerations

58. I have given due consideration to all of the representations submitted in support of and in opposition to the proposal. The existence of support does not, in itself, indicate an absence of harm and I have discussed the reasons for my findings in respect of the community, cultural and employment functions of the appeal site above. I will discuss the benefits of the scheme in the planning balance section below. I am also aware that there are numerous objections to the proposal indicating a substantial degree of public support for the retention of the existing use.
59. The appellant also raised concerns regarding the conduct and involvement of certain individuals in the consideration of the application. However, this is a matter for the parties involved. My conclusions are based upon my own independent assessment of the planning merits of the appeal.

Planning Balance and Conclusion

60. The Council's comments on the revised Framework focused principally on conflict with Policy HC6⁷. However, Policy S4 requires a balancing exercise between the benefits of development within a settlement and any adverse effects. Accordingly, I have undertaken my own assessment of the benefits and harms of the proposal having regard to the Framework as a whole.
61. Policy S4 of the Framework establishes a presumption that development proposals within settlements should be approved, unless the benefits of doing so would be substantially outweighed by any adverse effects when assessed against the national decision-making policies in the Framework.
62. The appeal site occupies a sustainable location close to services, facilities and public transport opportunities within the city centre of York. The proposal would result in the efficient reuse and remodelling of a previously developed site within a settlement for housing. I acknowledge that the Government attaches significant importance to boosting the supply of homes. However, there is agreement that the Council is currently able to demonstrate a 5-year housing land supply. If the appellant's assertion that the first-floor flat has always been a separate unit of accommodation were correct, the proposal would result in the net gain of 2, rather than 3 dwellings, as suggested by the appellant. Even taking the appellant's case

⁶ Appeal reference APP/C2741/W/22/3305435.

⁷ With reference to the Council's email to the Inspectorate dated 9 September 2026.

at its highest, the contribution to housing supply would be modest. Consequently, I attach moderate positive weight to these benefits.

63. I have found that the proposal would preserve the significance of the SAM and the setting of the listed buildings and would not harm the CCHCA through development within its setting. Accordingly, no heritage harm would arise, and this matter weighs neither for, nor against, the proposal.
64. Against the benefits, I have found that the proposal would result in the unjustified loss of an important community facility, cultural venue and employment-generating use. Policy HC6 of the Framework affords protection to such uses and seeks to resist their loss unless specified criteria are satisfied. I have had regard to the appellant's submissions that there is no reasonable prospect of the existing use being retained and that adequate alternative provision exists elsewhere⁸. However, for the reasons set out above, I am not satisfied that the appellant has demonstrated that the existing use could not reasonably be made viable, that there is no market interest in its continued operation, or that sufficient alternative provision exists for the particular community and cultural functions undertaken by the appeal site. Consequently, I find that the requirements of Policy HC6 have not been met and that the proposal would conflict with that policy.
65. The proposal would also result in the unjustified loss of employment-generating use, which would be at odds with the Framework's objective of supporting a strong and productive economy. Furthermore, there is no evidence before me that the safeguarding of this community, cultural and employment use is no longer appropriate, or that there is no reasonable prospect of the existing use being retained. In this regard, the proposal would give rise to the type of substantial adverse impact referred to in Policy S4(2)(a)(i) of the Framework. I therefore attach substantial weight to the adverse effects.
66. Taking all matters into account, I conclude that the substantial adverse impact of the proposal would substantially outweigh the moderate benefits arising from the delivery of housing and the reuse of a previously developed site. Accordingly, having applied Policy S4 of the Framework, I find that it does not indicate that planning permission should be granted.
67. The proposal would therefore conflict with the development plan and there are no material considerations, including the approach of the Framework, that indicate a decision should be made other than in accordance with it. Accordingly, the appeal is dismissed.

M Clowes

INSPECTOR

⁸ Inclusive of the appellant's email dated 10 September 2026 regarding the revised Framework.

APPEARANCES

FOR THE APPELLANT:

Nabeel Hanif	Appellant and Owner
Tanveer Hussain	Owner

FOR THE LOCAL PLANNING AUTHORITY:

Gareth Arnold	Development Manager
Sophie Prendergast	Planning Officer
David Waterhouse	Stapleton Waterhouse Ltd

INTERESTED PARTIES:

Cllr Peter Kilbane	Ward Councillor for Micklegate and Executive Member for Economy and Culture
Mr Robinson	On behalf of York Music Venue Network